



CHAPTER xv.

An Act to extend the periods limited by the Pontypridd and Rhondda Water Act 1913 for the purchase of lands and construction of works and to revive powers for purchase of lands. A.D. 1918.
[30th July 1918.]

WHEREAS by the Pontypridd and Rhondda Water Act 1910 (hereinafter referred to as "the Act of 1910") the Pontypridd and Rhondda Joint Water Board (hereinafter referred to as "the Board") were authorised to acquire lands and to construct a reservoir to be known as the Llia Reservoir and works connected therewith described in the Fifth Schedule to that Act and also other works described in section 22 of the Act of 1910:

And whereas by the Pontypridd and Rhondda Water Act 1913 (hereinafter referred to as "the Act of 1913") the Board were authorised to acquire lands and to construct further works in connection with their undertaking:

And whereas by the Act of 1913 the periods limited by the Act of 1910 for the compulsory purchase of lands and for the construction of the works described in or authorised by the Act of 1910 were extended and the powers of the Board to purchase certain other lands were revived:

And whereas it is expedient that such periods and the periods limited by the Act of 1913 for the compulsory purchase of lands and the construction of the works authorised by that Act should be extended as in this Act provided and that the powers of the Board to purchase certain lands should be revived:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

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And whereas pursuant to section 96 of the Act of 1910 an absolute majority of the whole number of the Board at a meeting held on the fifth day of December one thousand nine hundred and seventeen after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the "Rhondda Leader" and the "Glamorgan Free Press" being two newspapers published or circulating in the districts of the constituent authorities of the Board such notice being in addition to the ordinary notices required for summoning such meeting resolved that the costs and expenses of and incidental to the promotion of the Bill should be paid out of the revenues of the Board:

And whereas at a further meeting of the Board held in pursuance of a similar notice on the second day of January one thousand nine hundred and eighteen being not less than fourteen days after the deposit of the Bill in Parliament the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Board and has received the approval of the Local Government Board:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title
and citation.

1. This Act may be cited as the Pontypridd and Rhondda Water Act 1918 and this Act the Act of 1910 and the Act of 1913 may be cited together as the Pontypridd and Rhondda Water Acts 1910 to 1918.

Extending
time for
purchase of
lands and
revival of
powers.

2.—(1) The powers conferred upon the Board by the Act of 1910 as amended by section 14 of the Act of 1913 (other than the powers referred to in subsection (2) of this section) for the compulsory purchase of lands referred to in paragraphs (B) (C) and (D) of section 17 of the Pontypridd Waterworks and Tramroad Act 1908 and for the compulsory purchase of lands required for and in connection with the works numbered 4 5 7 8 9 10 11 12 13 18 and 19 described in section 4 of the Pontypridd Waterworks and Tramroad Act 1908 (both of which sections are set forth in the Fifth Schedule to the Act of 1910) and the works numbered 1 2 3 4 5 6 7 8 and 9 described in section 4 of the Pontypridd Waterworks (Amendment) Act 1909

(which section is set forth in the Fifth Schedule to the Act of 1910) and the works numbered 1 2 and 5 described in section 22 of the Act of 1910 and the powers conferred upon the Board by the Act of 1913 for the compulsory purchase of lands required for and in connection with the works numbered 1 2 3 and 4 described in section 6 of the Act of 1913 and of the lands (A) and (B) described in section 11 of the Act of 1913 are hereby extended and may be exercised at any time within but shall not be exercised after the expiration of five years from the date of the passing of this Act. A.D. 1918.

(2) In so far as the powers conferred upon the Board by the Act of 1910 for the compulsory purchase of any lands referred to in section 50 of that Act required for any of the purposes of the water undertaking of the Board have expired the same are hereby revived and may be exercised as follows but subject in all other respects to the provisions of the said section 50 :—

(A) The Board shall acquire the piece or parcel of land referred to in paragraph (D) of subsection (3) section 50 of the Act of 1910 within one year from the termination of the present war; and

(B) The powers of the Board of acquiring lands rights and easements in over or affecting the Lan Wood Estate as defined in subsection (9) of section 50 of the Act of 1910 may be exercised at any time within but shall not be exercised after the expiration of three years from the termination of the present war.

3. The period limited by section 29 of the Act of 1910 as amended by section 15 of the Act of 1913 and the period limited by section 8 of the Act of 1913 for the completion of the works referred to in the last preceding section of this Act are hereby extended until the expiration of ten years from the passing of this Act. Extending periods for completion of works.

4. The following provisions for the protection of Cory Brothers and Company Limited (in this section referred to as "the company") shall unless otherwise agreed between the Board and the company apply and have effect (that is to say):— For protection of Cory Brothers and Company Limited.

(1) The Board shall construct the aqueduct conduit or line or lines of pipes Work No. 1 and the works in

A.D. 1918.

connection therewith authorised by the Act of 1910 (in this section called "the Board's works") so far as the Board's works are over or affect the colliery inclines or ropeways or other works of the company at Pentre and Ystrad Rhondda in the urban district of Rhondda (in this section called "the company's property") so as not to disturb or in any way obstruct or interfere with the free and uninterrupted and safe user of the company's property or any materials or things carried or conveyed thereby to any greater extent than the same may be obstructed or interfered with by the bridges carrying Llewellyn Street and William Street over the Company's property at Pentre and Ystrad Rhondda respectively and if any such obstruction or interference shall be caused or take place the Board shall pay to the company full compensation in respect thereof :

(2) The Board's works so far as they are over the company's property shall be so constructed as that the headway to be provided between the undersurface of the Board's works and the present rail level of the company's colliery inclines at Pentre and Ystrad Rhondda shall not be less than the headway provided by the before-mentioned bridges and shall be constructed under the superintendence (if given) and to the reasonable satisfaction of the company and according to plans sections and specifications to be submitted to and reasonably approved by them before any part of the Board's works is commenced Provided that if the company do not within thirty days after such submission signify their approval or disapproval of the said plans sections and specifications or their requirements in relation thereto they shall be deemed to have approved thereof and the Board may proceed to execute the works accordingly :

(3) If any difference shall arise between the Board and the company under the foregoing provisions of this section such difference shall unless otherwise agreed be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto

the provisions of the Arbitration Act 1889 shall A.D. 1918.
apply to any such reference ;

- (4) Notwithstanding anything contained in the Act of 1910 the Board shall not for the purposes of the Board's works compulsorily purchase or acquire any lands or property belonging or leased to the company but the Board may purchase and the company shall sell and grant to the Board an easement or right of using such lands and property of the company as may be necessary for the purpose of constructing maintaining and repairing the Board's works and the provisions of the Lands Clauses Acts as varied by the Act of 1910 shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

5. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Board and may be paid out of the revenues of the Board.

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